

25STCV22995 25STCV22995

County: los-angeles
Division: Civil Law and Motion
Department: 14
Hearing date: 2026-06-26
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C14%2C06%2F26%2F2026
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Case Number: 25STCV22995 Hearing Date: June 26, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA, et al.

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14, et al.

et al.

BOBBETTE MARSCHIK, et al.

et al.

Plaintiff, et al.

v. et al.

et al.

AMERICAN HONDA MOTORS, INC., et al.

et al.

Defendants. et al.

et al. Case No. et al. 25STCV22995

et al. et al.

٤٤٤ Hearing Date: June 26, 2026٤

٤٤٤ Time:٤٤٤٤٤٤٤٤٤٤٤٤٤٤٤ 9:00 a.m.٤

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٤٤٤ [TENATIVE] ORDER RE:٤٤

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٤٤٤٤ DEFENDANT PNEUMO ABEX, LLC'S MOTION FOR SUMMARY
ADJUDICATION

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I.

Background

On August 5, 2025,
Plaintiff Bobbette Marschik filed her complaint for
personal injury alleging she developed mesothelioma from
direct non-occupational exposure to asbestos
contaminated consumer talc products and from
indirect occupational exposure to asbestos-containing automotive products
through her ex-husbands work at a service station.

On April 22, 2026, Defendant Pneumo
Abex, LLC ("Pneumo Abex" or "Defendant") moved for summary adjudication of the
causes of action for (1) false representation and (2) intentional
tort/intentional failure to warn/concealment (hereinafter "fraudulent
concealment"). Pneumo Abex argues that Plaintiffs lack and cannot reasonably
obtain evidence that Pneumo Abex made misrepresentations to Ms. Marschik or
that it knew of the hazards of their products and concealed these hazards.

On June 5, 2026, Plaintiffs opposed, arguing their discovery
responses contain detailed facts establishing that Pneumo Abex knew of the
hazards of their products and deliberately chose not to place warnings on its
products.

On June 15, 2026, Pneumo Abex replied, reiterating arguments from its moving papers.

Pneumo Abex's motion for summary

adjudication of the causes of action for false representation and fraudulent concealment is granted. Pneumo Abex satisfies its initial burden to present evidence that Plaintiffs' discovery responses pertaining to fraud were devoid of facts to support their contention that Pneumo Abex made misrepresentations to Ms. Marschik or knew of the dangers of its asbestos-containing brake products and intentionally concealed them. Plaintiffs failed to present evidence to raise a triable issue of material fact on these issues.

Pneumo Abex to give notice.

II.

Discussion

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

A.

Fraud

False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ ‘[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.’ [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “‘reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.’ [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: “ ‘(1) when the defendant is in a

fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ ” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, “As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

1. Defendant’s Burden: Factually Devoid

Pneumo Abex moves for summary adjudication of the cause of action for false representation on the grounds that Plaintiffs’ discovery responses are devoid of facts establishing that Pneumo Abex made any affirmative representation about the safety of its products to Ms. Marschik or that she relied on any such representation. (Motion at pp.7-8 [“In the instant action, Plaintiff’s theory against Abex, and all defendants, is that they misrepresented the safety of their products by failing to include a warning about the possibility of asbestos in their products. As such, any actionable fraud is premised on the non-disclosure of information rather than any affirmative misrepresentation of fact. Plaintiff presents no specific facts of any affirmative misrepresentation made by Abex, including through advertising... Plaintiff’s discovery responses are also factually devoid as to specific facts showing that Ms. Marschik actually relied upon any affirmative misrepresentations of fact made by Abex...Summary adjudication cannot be avoided by any claim that Abex made false statements to third parties.”].)

Pneumo Abex moves for summary adjudication of the cause of action for fraudulent concealment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that a transactional relationship existed between Ms. Marschik and Pneumo Abex giving rise to a duty to disclose. (Motion at p.14 [“To provide factually rich discovery responses, Ms. Marschik was required to present evidence of a special relationship between Abex and her. She failed to present specific facts showing that there was a fiduciary relationship

between her and Abex or that there was a transaction between her and Abex, as opposed to the public at large, sufficient to give rise to a special relationship. There is no evidence that Ms. Marschik or her ex-husband directly purchased the brakes from Abex, that Abex was directly involved in retail sales or marketing of their product towards Ms. Marschik, or any of the other factors discussed in Bader.”].) Additionally, Pneumo Abex argues that there is no evidence that it had actual knowledge of the health hazards associated with exposure to asbestos from the specific products at issue in this case. (Motion at p.15 [“Plaintiff’s discovery responses also fail to provide any specific evidence of such knowledge that any of Abex’s officers, directors, or managing agents actually knew of any alleged human health hazards associated with exposure to asbestos from specific products at or prior to the time of Ms. Marschik’s alleged exposure to asbestos-containing products manufactured, sold or supplied by Abex.”].)

In opposition, Plaintiffs argue that summary adjudication is not proper here because Pneumo Abex deliberately chose “not to disclose the deadly hazards created by its products while knowing of such hazards is the type of nondisclosure.” (Opp. at p.8.) Plaintiffs also argue that Pneumo Abex “does not deny that its knowledge of the hazards associated with asbestos exposure or its knowledge of the carcinogenic nature of asbestos pre-date Ms. Marschik’s and her husband ownership and operation of automotive service stations and service repair shops.” (Opp. at p.10.)

Pneumo Abex reiterates arguments from its moving papers in its reply.

Pneumo Abex relies on Plaintiffs’ responses to special interrogatories and requests for production to support its motion. Additionally, Pneumo Abex’s counsel declares that Ms. Marschik, her daughter Haidi Salerno, and her son Mark Salerno each stipulated that they would not offer testimony regarding the claims for false representation, concealment, or punitive damages. (Lu Decl. at ¶¶11-13.) A former employee, John Jessup, testified that he worked for Ms. Marschik at a Mobil Station until 1974 and had never heard of Pneumo Abex and did not associate it with any products. (Id. at ¶14.)

When Pneumo Abex asked Plaintiffs to set forth all facts supporting their claims for false representation and fraudulent concealment, Plaintiffs referred to their response to the special interrogatory regarding Ms. Marschik’s alleged exposure to Pneumo Abex products. Plaintiffs responded in

relevant part:

“Subject to the foregoing objections, without waiving the same, Plaintiff responds as follows: from approximately 1964-1987, Plaintiff Bobbette Marschik worked with her ex-husband Robert Salerno at the four gas and automotive repair stations they owned and she was exposed to Defendant PNEUMO ABEX LLC’s (“ABEX”) asbestos-containing friction products including but not limited to brake linings and blocks, Bendix, Raybestos, American Brakeblok, EIS/Cali Blok (hereinafter, collectively, “ABEX ASBESTOS-CONTAINING PRODUCTS”) – and was simultaneously a bystander to others’ work with and use of ABEX ASBESTOS- CONTAINING PRODUCTS – by which means plaintiff’s hair, person, shoes, clothing and undergarments were contaminated with indestructible asbestos and asbestos-laden dust, debris, fiber and particulate released, generated, created, emitted and otherwise caused by ABEX ASBESTOS-CONTAINING PRODUCTS without warning or protection from ABEX, resulting in plaintiff and her ex-husband’s daily and continuous taking into her home and vehicles daily-accumulating and increasing amounts of asbestos and asbestos-laden dust, debris, fiber and particulate from ABEX’S respective asbestos and asbestos-containing products on her hair, person, shoes, clothing and undergarments. Ms. Marschik was around others who performed automotive work and maintenance checks on vehicles. Ms. Marschik worked in the offices at the gas stations and Salerno’s Service Center, however, the offices opened directly into the shops and service bays. Robert Salerno conducted routine maintenance on all cars, including but not limited to, foreign and domestic cars. Salerno’s Service Center performed vehicle work including but not limited to, automotive repairs to ABEX ASBESTOS- CONTAINING PRODUCTS; inspections; and California brake inspections. At times, Robert Salerno would take used work rags and clothing home for laundering.

Plaintiff worked with her ex-husband as the accounting clerk every day from 1964-1987 in the gas stations and service station that they owned. Bobbette was exposed to asbestos-containing friction products and other automotive repair equipment while working at each of the gas stations and Salerno’s Service Center. Bobbette’s first husband, Robert Salerno, owned four gas stations during their marriage: Union 76 gas station/service station in San Bernardino, CA, Union 76 gas station /service station in Rialto, CA (Two locations in Rialto, CA), and mobile gas station/service station in Redlands, CA.

The manufacturers and product suppliers of the

above-identified friction products and those respective products' components and systems knew that the normal and intended design, use and operation of their brakes, brake components, gaskets and clutch systems created asbestos-laden dust, debris, fiber and particulate created by its defectively-designed ABEX'S ASBESTOS-CONTAINING PRODUCTS would be trapped within said vehicles' components and systems, thereby exposing end users performing vehicle maintenance jobs to asbestos-containing dust and debris without warning or protection from these vehicle components and system manufacturers. Further, Plaintiff and her ex-husband would remove (unknown to them) asbestos-contaminated work clothing; rather, staying in the asbestos-contaminated work clothing for hours at a time until the end of the evening, meanwhile sitting on or otherwise coming into contact with the plaintiff's home's furniture, carpets, bedding, draperies, fixtures and surfaces throughout the family home, by those means further contaminating plaintiff's home with indestructible asbestos and asbestos-laden dust, debris, fiber and particulate from ABEX'S respective asbestos and asbestos-containing products (including, but not limited to, ABEX ASBESTOS-CONTAINING PRODUCTS - including that asbestos generated, released and created during her and others' use of and/or work around the above-identified friction products) – to which plaintiff was further exposed and breathed on a daily, continuous and daily-increasing basis....[V]ehicle manufacturers and product suppliers failed to warn of the inherent latent dangers of its defective and asbestos-containing products and further failed to conduct a recall – whether by notice or otherwise – of its defective products.

Ms. Marschik was

unaware of her exposure to asbestos because defendant failed to warn of the presence of asbestos in their products or of the associated health risks. Further, PNEUMO ABEX LLC's asbestos-containing equipment Ms. Marschik was exposed to released respirable asbestos fibers in quantities that increased her risk of developing an asbestos-related illness. Had defendants warned Ms. Marschik of the possibility of asbestos in their products or the dangers of asbestos, Ms. Marschik would have taken steps to protect herself.

During the entire

time Plaintiff Bobbette Marschik worked with and/or around DEFENDANT ABEX'S Asbestos-containing material, there were no warnings, written instructions, or recommendations regarding the hazards of asbestos on, included with, inserted in, and/or affixed to any of Defendant's friction products and/or any box or packaging those products came in and to which Plaintiff Bobbette Marschik was

exposed, informing him of the need for the use of safety equipment and procedures to protect him from the dangers of asbestos exposure and/or inhalation of asbestos associated with these products. As a result, Plaintiff Bobbette Marschik was unaware of her need for the use of any types of safety devices and procedures designed specifically to reduce her possible exposure to, or inhalation of, asbestos fibers, particles, and/or dust during her work around Defendant's products. Plaintiff Bobbette Marschik thereon did not use any such safety devices during her work with, and/or around, Defendant's asbestos-containing products."

(Lu Decl., Exh. C at pp.3-35.) The responses further state that Pneumo Abex knew of the dangers of asbestos as far back as the 1930s and continued designing, manufacturing, supplying, and selling asbestos-containing products that would produce dust in their use without adequate warnings. (Id. at p.30.) Plaintiffs also alleged in their responses that it was known and foreseeable to Pneumo Abex that its asbestos-containing products were used, sanded, scraped, handled, blown out, and otherwise disturbed in a manner which caused asbestos exposure. (Id. at p.15.) In Plaintiffs' supplemental interrogatory responses, Plaintiffs further reference a records showing Pneumo Abex employees knew of the risk asbestos posed to its employees by the 1980s. (Id., Exh. E at pp. 53-56.)

Plaintiffs

responded to requests for production seeking all documents supporting the cause of action for false representation by identifying documents produced by Pneumo Abex in other matters and Pneumo Abex's business records. (Lu Decl., Exh. F at pp.5-6.)

Pneumo Abex

meets its burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support its contention that Pneumo Abex misrepresented the safety of its products. Plaintiffs' interrogatory responses fail to state that Pneumo Abex made any affirmative representations to Ms. Marschik or that it misrepresented the safety of its products. Although Plaintiffs argue in opposition that the discovery responses show Pneumo Abex knew of the hazards of its products and chose not to provide warnings, a cause of action for false representation requires an affirmative misrepresentation. The discovery responses at most establish that Pneumo Abex was aware of the hazards of asbestos. (Lu Decl., Exh. C at pp.3-35.) The responses fail to state that Pneumo Abex made any misrepresentations to Ms. Marschik, either directly or

through advertising, regarding the safety of its products. Moreover, Ms. Marschik, who should have personal knowledge of whether Pneumo Abex made representations to her about the safety of its products, stipulated that she would not provide testimony regarding the false representation cause of action. (Id. at ¶11.) Plaintiffs' discovery responses give rise to the inference that Plaintiffs lack and cannot reasonably obtain evidence to support their contention that Pneumo Abex misrepresented the safety of its products to Ms. Marschik.

As for the cause of action for fraudulent concealment, Plaintiffs' discovery responses fail to establish that a direct transactional relationship existed between Ms. Marschik and Pneumo Abex. Although Plaintiffs allege that Ms. Marschik operated automotive repair stations with her then-husband and worked near others using Pneumo Abex products, there are no facts that Ms. Marschik transacted with Pneumo Abex. (Lu Decl., Exh. C at pp.3-35.) The discovery responses are thus devoid of facts supporting Plaintiffs' contention that Pneumo Abex owed Ms. Marschik a duty to disclose defects in its products.

Additionally, the discovery responses fail to state that Pneumo Abex knew of the health hazards posed by the brake linings and blocks at issue in this case. Plaintiffs' interrogatory responses establish that Pneumo Abex knew of the hazards of asbestos and knew of the health hazards asbestos posed to its employees. ((Lu Decl., Exh. C at pp.3-35, Exh. E at pp. 53-56.) However, the responses fail to state the factual basis for Plaintiffs' contention that Pneumo Abex knew customers using Pneumo Abex brake linings and blocks would be exposed to asbestos and be at increased risk for asbestos-related disease. Rather, the interrogatories state that it was foreseeable that customers handling these products would use them in a manner that exposed them to asbestos. (Id., Exh. C at p.15.) The fact that exposure to asbestos was foreseeable fails to establish that Pneumo Abex knew of the hazards posed by their products and intentionally concealed them. Plaintiffs' discovery responses are thus devoid of facts supporting Plaintiffs' contention that Pneumo Abex knew of the hazards posed by its products, owed Ms. Marschik a duty to disclose those hazards, and intentionally concealed them.

Plaintiffs' discovery responses give rise to the inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment. Accordingly, Pneumo

Abex meets its burden on summary judgment. The burden shifts to Plaintiffs.

2.

Plaintiffs'

Burden

Plaintiffs argue in opposition that summary adjudication is not appropriate here because their discovery responses contained detailed facts showing Pneumo Abex was aware of the hazards of asbestos before Ms. Marschik began operating the automotive repair stations. Plaintiffs advance additional excerpts from Ms. Marschik's deposition, directing the court's attention to portions of the testimony containing background information about the history of the repair stations Ms. Marschik operated with her then-husband. (PUMF Nos. 1-16.) Ms. Marschik testified that her husband and other mechanics used after market parts in her presence, including Pneumo Abex products. (Halbany Exh. E at 85:8-86:9.) Ms. Marschik testified that her husband and other mechanics used Pneumo Abex products hundreds of times throughout the years. (Id. at 92:14-93:5.) Plaintiffs direct the court to portions of Ms. Marschik's testimony describing her exposure to Pneumo Abex products and how often they were used at her workplace. This testimony fails to establish that Pneumo Abex made misrepresentations to Ms. Marschik or that it intentionally concealed the hazards of its products.

Plaintiffs also advance excerpts from the deposition of Pneumo Abex's corporate representative, Albert Indelicato, taken in another matter[1].

(Halbany Decl., Exh. I.) Plaintiffs direct the court's attention to portions of the transcript showing Pneumo Abex also sold brake linings under the name Rayloc. (UMF Nos. 22-23; Halbany Decl., Exh. I at 72:11-74:10, 79:3-8, 22:12-23:3.) Plaintiffs also advance the deposition testimony of Byron Frantz for the same purpose. (UMF Nos. 22-23; Halbany Decl., Exh. H at 33:18 34:16, 35:4-19, Exh. L at 17-18; 65-66.) Plaintiffs advance the deposition testimony of another corporate representative, William Bucella, to show that Pneumo Abex knew of the link between asbestos exposure and cancer as early as the 1940s. (Halbany Decl., Exh. L at 17-18; 65-66.) Plaintiffs' remaining evidence consists of a publication from the Ford Motor Company regarding asbestos exposure during blow out of brake and clutch assemblies, studies and conferences about the release of asbestos dust during brake replacement, and Pneumo Abex's responses to interrogatories from another matter showing that the company placed a warning on its brake linings in the 1970s stating that asbestos dust may cause serious

bodily harm. (Halbany Decl., Exhs. M-T.)

This evidence likewise fails to establish that Pneumo Abex made misrepresentations to Ms. Marschik or that it intentionally concealed the hazards of its products. As discussed, even if there is evidence that Pneumo Abex knew of the hazards of asbestos, the evidence fails to establish that it knew customers using its products would be exposed to asbestos such that they were at increased risk of asbestos-related disease. Although Plaintiff provides publications warning of asbestos dust exposure during brake replacement, there is no evidence that Pneumo Abex was aware of those studies and knew that customers using their products would be exposed to asbestos dust and an increased risk of asbestos-related disease. These documents likewise fail to establish that Pneumo Abex had a duty to disclose these hazards to Ms. Marschik or that it intentionally concealed these hazards from her.

Plaintiffs fail to advance affirmative evidence supporting their causes of action for false representation and fraudulent concealment. Accordingly, Pneumo Abex's motion for summary adjudication of the causes of action for false representation and fraudulent concealment is granted.

III.

Conclusion

Pneumo Abex's motion for summary adjudication of the causes of action for false representation and fraudulent concealment is granted. Pneumo Abex satisfies its initial burden to present evidence that Plaintiffs' discovery responses pertaining to fraud were devoid of facts to support their contention that Pneumo Abex made misrepresentations to Ms. Marschik or knew of the dangers of its asbestos-containing brake products and intentionally concealed them. Plaintiffs failed to present evidence to raise a triable issue of material fact on these issues.

Pneumo Abex to give notice.

[1] Plaintiffs' exhibits I-L are inadmissible hearsay. ((Berroteran v. Superior Court (2022) 12 Cal.5th 867 ["The party urging the admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Exhibits M-T are also inadmissible because they are not

authenticated. Pneumo Abex failed to object to these exhibits. However, Plaintiffs fail to meet their burden on summary adjudication even if the court considers this evidence.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA,

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,

BOBBETTE MARSCHIK,

Plaintiff,

v.

AMERICAN HONDA MOTORS, INC., et al.

Defendants.

Case No. 25STCV22995

Hearing Date: June 26, 2026

Time: 9:00 a.m.

??? [TENTATIVE] ORDER RE:??

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DEFENDANT DCO LLC'S MOTION FOR SUMMARY JUDGMENT OR,
IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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1.

## Background

On August 5, 2025, Plaintiff Bobbette Marschik filed her complaint for personal injury alleging she developed mesothelioma from direct non-occupational exposure to asbestos contaminated consumer talc products and from indirect occupational exposure to asbestos-containing automotive products through her ex-husband's work at a service station.

On April 22, 2026, Defendant DCo LLC (“DCo” or “Defendant”) moved for summary judgment or summary adjudication on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which DCo was responsible.

On June 5, 2026, Plaintiff opposed, arguing that DCo failed to shift its burden on summary judgment. Plaintiff also argues that summary adjudication of her fraud-based causes of action and demand for punitive damages is not appropriate.

On June 15, 2026, DCo replied,  
reiterating arguments from its moving papers.

DCo meets its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which DCo was responsible. Plaintiff fails to present affirmative evidence to support her claims against DCo. DCo's motion for summary judgment is granted. DCo's motion for summary adjudication is moot.

II.

## Evidentiary Objections

### Plaintiff's Objections

Overruled:

#### 1. Exhibit

J in its entirety: Plaintiff objects to the declaration of Marcy Duncan in its entirety on the grounds that Ms. Duncan lacks personal knowledge of the facts stated in the declaration. Plaintiff also argues that the declaration lacks foundation as a result of the lack of personal knowledge.

Ms. Duncan declares that she was employed by DCo between 1968 and 2006, and worked in different positions in the Sealing Products Division, including as a Sales Operations Manager. (Lu Decl., Exh. J at ¶12.) During her employment, Ms. Duncan acquired personal knowledge of the products manufactured, sold, and distributed by the Victor Manufacturing & Gasket Company ("Victor"), a division of DCo, then known as the Dana Corporation ("Dana"). (Id. at ¶13.) Ms. Duncan's declaration establishes that she has personal knowledge sufficient to testify on whether Victor gaskets contained asbestos during her employment, a time period which overlaps with Ms. Marschik's alleged dates of exposure. It is reasonable to infer that Ms. Duncan possesses personal knowledge of the facts stated in her declaration because she worked as a Sales Operations Manager and would reasonably have obtained knowledge about Victor's products from her sales work. The objection is overruled.

Objections 2-14 are overruled for the same reasons as objection number 1.

III.

## Discussion

A.

### Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process

of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a

plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18



Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (Collin v. CalPortland Co., (2014) 228 Cal.App.4th 582, 593.)

i. Defendant's

Burden: Factually Devoid

Dco moves for summary

adjudication on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which it was responsible. Dco argues that Plaintiff's discovery responses are devoid of facts supporting her contention that she was exposed to Dco products containing asbestos. (Motion at p.7.) Specifically, Dco argues that the components Plaintiff identified in her discovery responses failed to identify whether the asbestos-containing version of the products at issue were present at her worksite. (Id., at p.9 ["Plaintiff testified that she was exposed to Spicer brakes when Dana Corporation did not manufacture Spicer brand brakes...Plaintiff's son, Mr. Salerno – the only plaintiff witness who had any knowledge of the family auto service could not identify one single instance where a Victor gasket was removed or installed in Ms. Marschik's presence...Dana Corporation's Victor Products Division manufactures valve cover, timing, cover, and oil pan gaskets... They are, and have been, non-asbestos-containing gaskets... Dana Corporation's Victor Products Division has manufactured largely non-asbestos containing thermostat gaskets, throttle body gaskets, and differential gaskets... Mr. Salerno testified that he has never seen a clutch change on anything bigger than the 25 foot motor home... Mr. Salerno testified that in Ms. Marschik's presence, the biggest vehicle he's seen a clutch change performed on was a 1.25-ton pickup... Dana Corporation's Spicer Clutch Division manufactured clutches, primarily for heavy-duty trucks. Dana Corporation's Spicer Clutch Division has never manufactured clutches for passenger vehicles as small as, or smaller than, 25' motorhomes, 1-ton pickup trucks, and 1-and-a-quarter-ton pickup trucks."].)

In opposition, Plaintiff argues that

Dco failed to shift its burden on summary judgment because the record shows that the Victor and Spicer brand products at issue were present at her worksite.

(Opp. at p. 7 [“...the record shows that Victor gaskets and Spicer clutches were purchased and used at the various service stations where Ms. Marschik worked during the time she worked there. Both she and Mark testified that these products were present and that Ms. Marschik worked on site at the stations during the same time period. This is not a situation where the defendant’s presence could have been anywhere at a large refinery and there was no evidence placing its employees in the same vicinity as the plaintiff. Here, Ms. Marschik worked in an office which opened into the service station where the work with DCo’s products was performed. The fact that neither she nor her children can recall a specific instance or date when such exposure occurred is immaterial. DCo fails to cite to any case establishing that such specificity is required to defeat a summary judgment motion because, simply put, it is not required by California law. DCo has not met its burden and summary judgment is unwarranted. Its motion should be denied.”].)

DCo relies on Plaintiff’s responses to written discovery, Plaintiff’s deposition testimony, and the declarations of DCo’s corporate representatives to support its motion. When DCo asked Plaintiff to set forth “all facts, including identifying all EVIDENCE, in support of” her contention that she “came into contact with or was otherwise EXPOSED to ASBESTOS-containing product(s) manufactured, sold or supplied by DCo,” Plaintiff responded in relevant part:

“Plaintiff Bobbette Marschik was exposed to Defendant DCo LLC’S (herein “DCo”) asbestos-containing products including but not limited to automobiles with asbestos-containing friction materials and braking systems, Spicer Truck brakes, and Victor gaskets as well as other automotive replacement parts, from approximately 1964-1987 working with her ex-husband Robert Salerno at the four gas and automotive repair stations they owned. Ms. Marschik was around others who performed automotive work and maintenance checks on vehicles. Ms. Marschik worked in the offices at the gas stations and Salerno’s Service Center, however, the offices opened directly into the shops and service bays. Robert Salerno conducted routine maintenance on all cars, including but not limited to, foreign and domestic cars. Salerno’s Service Center performed vehicle work including but not limited to, automotive repairs to brakes, tires, and paint; body work; engine overhauls; inspections; and California brake inspections. At times, Robert Salerno would take used work rags and clothing home for laundering.

...

As

a result of her exposure to defendant's asbestos-containing automotive products, Plaintiff Bobbette Marschik developed mesothelioma. For further response, please see Plaintiff's responses to Standard Interrogatories and Plaintiff Bobbette Marschik's forthcoming deposition.

Plaintiff

identifies her co-workers. The names, last known addresses, and telephone numbers of Plaintiff's co-workers and superiors may be listed within Plaintiff's employment records. Plaintiff further identifies her son Mark Salerno, who started working at the service stations when he was 10 years old and now owns the same Automotive Shop that his parents owned. Plaintiff has made a reasonable good-faith effort to obtain the names, last known addresses, and telephone numbers for the aforementioned individuals whom they may not have identified at this time. At this time, names of further witnesses are unknown to Plaintiff. Plaintiff will provide this information once it becomes available. Plaintiff further identifies Defendants' former employees and the employees of their suppliers."

(Lu Decl., Exh. E  
at pp.2-3, 11.)

Ms. Marschik testified at her deposition that she could not testify as to whether a Victor gasket was installed in her presence or what percentage of gaskets used at the service stations where she worked were Victor brand. (Lu Decl., Exh. H at 417:9-22.) When DCo's counsel asked whether she was sure she recalled seeing a package with the name Spicer Brakes at a service station, Ms. Marschik responded that she thought she did but had no memory of what the package looked like and did not know whether the package contained brakes. (Id., at 420:2-16.) Ms. Marschik had never handled any Victor or Spicer products. (Id., at 420:17-23.) Although Ms. Marschik had previously mentioned Spicer gaskets, she only knew that she saw the name Spicer on packages. (Id., at 421:4-24.)

Ms. Marschik's son, Mark Salerno, testified that he did not recognize the name DCo and did not associate it with any parts. (Lu Decl., Exh. I at 227:2-15.) Mr. Salerno recognized the names Victor and Victor Reinz, and associated these names with valve cover, timing cover, oil pan, thermostat, throttle body, and differential gaskets. (Id., at 228:1-229:9.)

Mr. Salerno did not know whether the gaskets at the service stations where Ms. Marschik worked were asbestos-containing or not. (Id., at 230:2-12.) Mr. Salerno did not recall seeing a Victor gasket being removed from a vehicle in Ms. Marschik's presence. (Id., at 231:9-12.) Mr. Salerno did not recall performing clutch work on anything larger than a 1.25 ton pickup truck. (Id., at 234:7-25.)

Dco's corporate representative, Marcy Duncan, declares that Victor made thousands of gaskets in various shapes and sizes to fit various engine types. (Lu Decl., Exh. J at ¶4.) Some, but not all of these gaskets contained asbestos mixed with other materials such as cellulose, metals, rubber, and cork. (Id. at ¶4.) Victor's valve cover and oil pan gaskets were non-asbestos gaskets. (Id. at ¶7.) Victor's thermostat, timing cover, throttle body, and differential gaskets were all non-asbestos gaskets. (Id. at ¶8.) Victor Reinz branded gaskets did not contain asbestos. (Id. at ¶9.)

Another corporate representative, Jon Aldrich, testifies that Spicer Clutch Division, a division of Dana Corporation, manufactured new clutches for medium and heavy duty trucks that weighed nine or more tons in the 1970s through the 1990s. (Lu Decl., Exh. K at ¶¶4-5.) Spicer obtained facings for these clutches from various suppliers. (Id. at ¶6.) Some of these facings contained encapsulated asbestos. (Id.) Spicer also manufactured clutches that did not contain asbestos. (Id. at ¶7.) By 1980, most Spicer clutches contained non-asbestos facings. (Id. at ¶8.) All Spicer clutches were non-asbestos containing by 1984. (Id. at ¶9.) Spicer did not manufacture brakes. (Id. at ¶10.)

Dco meets its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Dco was responsible were present at her worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p.980, Collin, supra, 228 Cal.App.4th at p.593.) Additionally, Plaintiff's evidence must support a reasonable inference that it is more likely than not that the asbestos-containing version of Dco's products were present at her worksite. (Collin, supra, 228 Cal.App.4th at p.593.)

Plaintiff's interrogatory responses

identified Victor gaskets and Spicer brakes as the DCo products that exposed her to asbestos. With respect to the Victor gaskets, Ms. Marschik could not identify which gaskets she saw at the service stations where she worked were Victor brand. (Lu

Decl., Exh. H at 417:9-22.) Mr. Salerno testified that he associated Victor and Victor Reinz with only valve cover, timing cover, oil pan, thermostat, throttle body, and differential gaskets. (Lu Decl., Exh. I at 228:1-229:9.) However, those types of Victor gaskets did not contain asbestos. (Lu Decl., Exh. J at ¶¶4-7.) Although Mr. Salerno testified that he recognized the Victor Reinz brand, that brand did not make asbestos-containing gaskets. (Id.) The witnesses with knowledge of the gaskets present at those worksites did not know which gaskets were present or could only identify gasket varieties which Ms. Duncan's testimony establishes did not contain asbestos. Plaintiff's interrogatory responses and deposition testimony are thus devoid of facts supporting her claims that asbestos-containing Victor gaskets exposed Plaintiff to asbestos because there is no evidence that asbestos-containing Victor gaskets were present at her worksites.

Ms. Marschik originally identified

Spicer brakes as the product that exposed her to asbestos. (Lu Decl., Exh. H at 420:2-16.) However, Mr. Aldrich's testimony establishes that Spicer never manufactured brakes. (Lu Decl., Exh. K at ¶10.) With respect to the Spicer clutches at issue, Mr. Aldrich's testimony establishes that Spicer made clutches that may have contained asbestos exclusively for medium and heavy duty trucks that weighed more than 9 tons during the exposure period at issue. (Id. at ¶¶4-5.) Mr. Salerno testified that he does not recall performing clutch work on anything bigger than a 1.25-ton truck. (Lu Decl., Exh. I at 234:7-25.) There is no evidence that an asbestos-containing Spicer clutch was present at Ms. Marschik's worksite because there is no evidence that vehicles that would have used Spicer clutches received clutch work at Ms. Marschik's service centers. There is no other evidence that a Spicer clutch was present at the service stations. Ms. Marschik testified that she remembered Spicer brakes and gaskets at the service stations but provided no testimony on Spicer clutches. Even if there was evidence of Spicer clutches being present at the service stations, there is no evidence that those clutches were asbestos-containing versions of the Spicer clutch. Plaintiff's interrogatories and deposition testimony are thus devoid of facts supporting her claims that asbestos-containing Spicer clutches exposed her to asbestos because there is no evidence that asbestos-containing Spicer clutches were present at her worksite.

Plaintiff's discovery responses are devoid of facts supporting her claims against DCo and give rise to the inference that Plaintiff lacks and cannot reasonably obtain evidence to support her claims. Accordingly, DCo meets its burden on summary judgment. The burden shifts to Plaintiff.

## ii. Plaintiff's Burden

Plaintiff argues in opposition that summary judgment is not warranted here because DCo failed to shift its burden because the record shows that Victor gaskets and Spicer clutches were purchased and used at the service stations where Ms. Marschik worked. Plaintiff alleges that the fact she and her children could not recall a specific instance of exposure is immaterial.

Plaintiff advances additional excerpts from her deposition, directing the court's attention to portions of the testimony containing background information about the history of the repair stations Ms. Marschik operated with her then-husband. (PUMF Nos. 1-10.) Plaintiff directs the court's attention to her testimony that she remembered parts bearing the Victor name were present at a Mobil service station she operated. (Halbany Decl., Exh. B at 415:3-25.) Ms. Marschik recalled seeing the name Victor on packages stored at the service setation. (Id.) Ms. Marschik did not remember any specific details about the packaging and had never seen the packages open at the service station. (Id., at 416:16-25.)

Plaintiff also points to Mr. Salerno's testimony that he recalled ordering and picking up Victor and Spicer parts. (Halbany Decl., Exh. C at 36:8-17, 38:16-20.) Mr. Salerno also recalled associating Dana with wheel seal gaskets that were made with metal and rubber and used on the tube of the differential in a wheel. (Id., et 224:2-21.) Mr. Salerno's remaining testimony and the testimony of Ms. Marschik's daughter, Heidi Salerno, consists of additional background information about Ms. Marschik's work at the service stations that fail to establish that asbestos-containing Victor, Spicer, or any other Dana Corporation products were present at the service setations. (UMF Nos. 22-25, Halbany Decl., Exh. E.)

The deposition testimony fails to establish that an asbestos-containing version of a component for which DCo was responsible was

present at Ms. Marschik's worksites. Although Ms. Marschik recalls seeing Victor packaging, she provided no testimony establishing which Victor gaskets were present at her service stations. (Halbany Decl., Exh. B at 415:3-25.) Although Mr. Salerno recalls ordering and picking up Victor gaskets, there is again no testimony specifying which gaskets were present at the service stations. (Halbany Decl., Exh. C at 36:8-17, 38:16-20.) Mr. Salerno's testimony regarding the wheel seal gaskets likewise fail to establish that the wheel seal gaskets contained asbestos because the wheel seal gasket was used on the differential in a wheel. (Id., et 224:2-21.) As discussed, DCo's evidence established that differential gaskets manufactured under the Victor brand did not contain asbestos. Plaintiff's argument that the presence of Victor products at the service stations is sufficient to meet her burden on summary judgment is unavailing because Plaintiff was also required to present evidence from which the court can reasonably infer that it was more likely than not that she was exposed to an asbestos-containing variety of DCo's products. Plaintiff fails to present evidence that it is more likely than not that the asbestos-containing variety of Victor gaskets was present at her worksites.

Plaintiff also advances

deposition testimony of DCo corporate representatives taken in other matters<sup>[1]</sup> to show that Victor manufactured asbestos-containing head, connector, flange, manifold, cylinder head, and exhaust pipe gaskets that contained no warnings until 1985. (PUMF Nos. 30-36, Halbany Decl., Exhs. F-I.) Plaintiff also advances an article from 1980 authored by the Chief Engineer of Victor products Division of Dana on the use of asbestos in gaskets and the health hazards of asbestos. (Halbany Decl., Exh. L.) This evidence fails to establish that an asbestos-containing Victor seal was present at Ms. Marschik's worksites. DCo does not dispute that some of its gaskets contained asbestos. The issue is whether there is evidence from which the court may infer that the asbestos-containing variety of the Victor gaskets was present at Ms. Marschik's worksites.

Plaintiff also advances

DCo's responses to interrogatories in other matters to show that Dana marketed Spicer clutch facings, plates, and automatic transmission plates for automobiles, light duty trucks, trailers, and offroad vehicles. (UMF Nos. 37-38.) However, the interrogatory at issue actually asks the following: "Did YOU or any of YOUR predecessors-in-interest MARKET clutch facings, clutch plates or automatic transmission plates for any of the uses listed below at any time between 1930 and 1985? A. Automobiles or light duty trucks; B. Heavy duty trucks or

trailers; Buses or coaches...” (Halbany Decl., Exh. J at pp.14-15.) The interrogatory asks for information about clutch facings, clutch plates, or automatic transmission plates without differentiating which category of vehicles pertains to which component. As discussed, DCo's evidence establishes that Spicer clutches were only used in medium and heavy trucks weighing more than 9 tons, not the light vehicles serviced at Ms. Marschik's service stations. As for the portion of the interrogatory responses discussing clutch brakes, the responses state that “the friction material used in some of the clutch brakes manufactured by the Division for installation on certain clutches may have contained asbestos” but that DCo “does not know when such asbestos-containing clutch brakes, if there were any, were last manufactured.” (Id. at p.18.) Additionally, if it did manufacture clutch brakes, they were manufactured “principally for medium and heavy duty trucks.” (Id.) The responses state that DCo did not know if Spicer manufactured these clutch brakes. Even if it did manufacture such components, the clutch brakes were manufactured to be installed on Spicer clutches which were not used on lighter vehicles like those serviced at Ms. Marschik's worksites. Accordingly, the interrogatory responses fail to establish that Spicer clutches were present at Ms. Marschik's worksites.

Accordingly,

Plaintiff fails to meet her burden to raise a triable issue of material fact over whether an asbestos-containing product for which DCo was responsible was present at her worksites. Therefore, DCo's motion for summary judgment is granted.

IV.

Conclusion

DCo meets its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which DCo was responsible. Plaintiff fails to present affirmative evidence to support her claims against DCo. DCo's motion for summary judgment is granted. DCo's motion for summary adjudication is moot.

DCo to give notice.

[1] Plaintiff's

exhibits F-I are inadmissible hearsay. ((Berroteran v. Superior Court (2022) 12 Cal.5th 867 [“The party urging the admission of deposition testimony bears the burden of rebutting the general rule by submitting



appropriate information justifying the admission of designated deposition testimony.”].) Exhibit L is also inadmissible because it is not authenticated. DCo failed to object to these exhibits. However, Plaintiff fails to meet her burden on summary judgment even if the court considers this evidence.

.....

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

..

BOBBETTE MARSCHIK,

Plaintiff,

v.

AMERICAN HONDA MOTORS, INC., et al.

Defendants.

Case No. 25STCV22995

Hearing Date: June 26, 2026

Time: 9:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT EATON CORPORATION'S MOTION FOR SUMMARY JUDGMENT  
OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On August 5, 2025,  
Plaintiff Bobbette Marschik filed her complaint for  
personal injury alleging she developed mesothelioma from  
direct non-occupational exposure to asbestos  
contaminated consumer talc products and from  
indirect occupational exposure to asbestos-containing automotive products  
through her ex-husband's work at a service station. As against the Eaton  
Corporation, Plaintiff alleges Ms. Marschik was exposed to asbestos by truck  
brakes and axles manufactured by Eaton.

On April 22, 2026, Eaton Corporation  
("Eaton") moved for summary judgment<sup>[1]</sup> or, in the alternative, summary adjudication, arguing  
Plaintiff lacks and cannot reasonably obtain evidence that she worked with or  
around an asbestos-containing product for which Eaton is responsible.

On June 5, 2026, Plaintiff opposed, arguing that Eaton  
failed to shift its burden on summary judgment because Plaintiff testified that  
Eaton products were used at Ms. Marschik's worksite. Alternatively, Plaintiff requests  
a continuance to allow them to depose Eaton's corporate representative.

Eaton did not file a reply.

Eaton fails to meet its initial burden to prove that  
Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was

exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied. Eaton's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment. Additionally, Eaton's argument with respect to privity is without merit.

Eaton satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Eaton engaged in conduct amounting to malice, fraud, or oppression. Eaton also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Eaton misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Eaton's motion for summary adjudication of the fraud-based causes of action and the demand for punitive damages is granted.

Plaintiff's request for a continuance under Code of Civil Procedure section 437c, subdivision (h) is denied.

## II.

### Discussion

#### A.

##### Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Id.* at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories

seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show "some threshold exposure" to asbestos-containing products and must further establish to a "reasonable medical probability" that a particular exposure or series of exposures was a "legal cause" of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) "[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence "defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it..." (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant's Burden:

Factually Devoid

Eaton moves for

summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which Eaton was responsible. Specifically, Eaton argues that Plaintiff's discovery responses are devoid of facts establishing that Ms. Marschik actually worked with or around an Eaton product containing asbestos. (Motion at pdf p.11 [“While Plaintiff may allege she worked around others working on Eaton products, she has no competent evidence to establish what product Eaton manufactured, let alone whether others around her actually worked on asbestos-containing materials for which Eaton is responsible. There are no other product identification witnesses identified against Eaton. Thus, Plaintiff has no evidence establishing exposure to asbestos related to any Eaton product. Without competent evidence of exposure, there is no causation.”].)

In opposition,

Plaintiff argues that Eaton failed to shift the burden on summary judgment because Plaintiff's testimony establishes that Eaton products were present at the service centers where Ms. Marschik worked. Alternatively, Plaintiff requests a continuance to allow them to take the deposition of Eaton's corporate representative.

Eaton relies on

Plaintiff's responses to written discovery and deposition testimony to support its motion. When Eaton asked Plaintiff to state all facts supporting her claim that she was exposed to asbestos for which Eaton is responsible, Plaintiff responded in relevant part:

“Plaintiff

Bobbette Marschik was exposed to Defendant EATON CORPORATION's (herein “EATON”) asbestos containing friction products including but not limited to for friction products and brakes from approximately 1964-1987 working with her ex-husband Robert Salerno at the four gas and automotive repair stations they owned. Ms. Marschik was around others who performed automotive work and maintenance checks on vehicles. Ms. Marschik worked in the offices at the gas stations and Salerno's Service Center, however, offices opened directly into the shops and service bays. Robert Salerno conducted routine maintenance on all cars, including but not limited to, foreign and domestic cars. Salerno's Service Center performed vehicle work including but not limited to, automotive repairs to brakes, tires, and paint; body work; engine overhauls; inspections; and California brake inspections. At times, Robert Salerno would take used work

rag and clothing home for laundering.

Plaintiff worked

with her ex-husband as the accounting clerk every day from 1964-1987 in the gas stations and service station that they owned. Bobbette was exposed to asbestos-containing friction products and other automotive repair equipment while working at each of the gas stations and Salerno's Service Center.

Bobbette's first husband, Robert Salerno, owned four gas stations during their marriage: Union 76 gas station/service station in San Bernardino, CA, Union 76 gas station /service station in Rialto, CA (Two locations in Rialto, CA), and mobile gas station/service station in Redlands, CA.

As a direct and

proximate result of the aforesaid conduct of Defendant and thereto the asbestos containing products supplied by EATON, Plaintiff Bobbette Marschik was compelled to and did employ the services of hospitals, surgeons, physicians, nurses, and the like, to care for and treat Plaintiff Bobbette Marschik, and did incur medical, hospital and professional incidental expenses, and Plaintiffs are informed and believe and thereupon allege that by reason of said injuries.

...

Plaintiff's

experts have testified in the past, and will testify, that the brakes Plaintiff was exposed to were asbestos-containing during the relevant time period. Among other things, Plaintiff's experts rely on the following sources: EPA studies: The Regulatory Impact Analysis of Controls on Asbestos and Asbestos Products – Final Report – Volume I Technical Report - prepared for the United States Environmental Protection Agency, January 19, 1989. According to this report, the use of asbestos in brake materials dates back prior to the 1930s. Asbestos was used in the manufacture of drum brake linings and brake blocks because of its thermal stability, reinforcing properties, flexibility, resistance to wear, and relatively low cost. Asbestos remained a primary ingredient in brake shoes and linings well into the 1980s. In fact, in volume III of the same report, the EPA acknowledged that, as of 1986, asbestos brake linings still accounted for 90 to 95 percent of the original equipment market and virtually 100 percent of the aftermarket. (Id. at Vol. III, Appx. F, Section XVIII, p. 5.)."

(Wyatt Decl., Exh. E at pp.2-6.)

Ms.

Marschik testified that she and her ex-husband operated a Mobil service center beginning in 1965 or 1966 and operated it for a few years before moving onto the next service center. (Wyatt Decl., Exh. G at 35:2-23.) Ms. Marschik worked at the Mobil station and later at the Salerno Service Center ("Salerno") two or three days a week performing accounting, banking, and other such work. (Id., at 43:20-45:7.) By the time Ms. Marschik began working at a service center in Redlands, she went to work every day. (Id., at 45:23-46:6.) Ms. Marschik and her husband began operating Salerno in 1976. (Wyatt Decl., Exh. B at p.11.) At Salerno, Ms. Marschik's office was 10 to 15 feet from the first bay where auto repair work took place. (Wyatt Decl., Exh. G at 46:7-47:10.) At the station in Rialto, Ms. Marschik's office was open to the auto shop where vehicles were serviced. (Id., at 48:8-49:1.) At a Mobil station in Redlands, Ms. Marschik's office was also open to the auto shop. (Id., at 49:2-13.) Ms. Marschik stopped working at Salerno after she and her husband divorced in 1986. (Id., at 146:13-24.)

Ms.

Marschik associated the name Eaton with brakes. (Wyatt Decl., Exh. G at 464:23-465:6.) Ms. Marschik say the brakes at the Mobil station and the Salerno auto repair shop. (Id., at 465:10-13.) Ms. Marschik never personally worked with or handled Eaton brakes. (Id., at 465:14-23.) Ms. Marschik knew that Eaton brake products were present at the Mobil station and auto repair shop because she saw them stored. (Id., at 465:24-466:2.) Ms. Marschik had no information about whether anyone had ever installed an Eaton brake in her presence. (Id., at 466:3-10.) Ms. Marschik had never seen an open Eaton brake box in her presence or an Eaton manual. (Id., at 466:11-15.) Although she saw Eaton on invoices, she did not recall any other information from the invoices. (Id., at 466:16-467:3.) Ms. Marschik saw packaging the Eaton brakes came in but did not remember anything else about the packaging or markings on the packaging. (Id., at 467:5-468:6.)

Ms.

Marschik's son, Mark Salerno, testified that he associated Eaton with gaskets, third member bearings, and U-joints. (Wyatt Decl., Exh. H at 213:14-24.)

Eaton

fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing

product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Eaton was responsible were present at Ms. Marschik's worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980, Collin, supra, 228 Cal.App.4th at p. 593.)

Plaintiff's interrogatory responses state that she was exposed to asbestos-containing brakes manufactured by Eaton at the service stations she operated with her husband. (Wyatt Decl., Exh. E at pp.2-6.) The responses also referenced EPA reports stating non-asbestos brake products were not commercially available until after 1982. (Id.) Thus, any Eaton brake products present at Ms. Marschik's worksite before 1982 contained asbestos. Ms. Marschik testifies that she saw Eaton brakes stored at the Mobil station and Salerno. (Wyatt Decl., Exh. G at 465:10-466:2.) The discovery record establishes that Eaton brakes containing asbestos were definitely at Ms. Marschik's worksite at the Mobil station and Salerno auto shop. The record also establishes the Ms. Marschik worked in open offices close to the auto shop where brakes were being replaced. (Wyatt Decl., Exh. G at 46:7-47:10.) It is reasonable to infer from these facts that Ms. Marschik would have been exposed to asbestos dust if a mechanic worked with an Eaton brake while Ms. Marschik was at the worksite. The discovery responses and deposition testimony therefore establish that the Eaton brakes were at Ms. Marschik's worksites and that these products contained asbestos.

Plaintiff's discovery responses contained sufficient facts to support her claim that she was exposed to asbestos by Eaton brake products. Accordingly, Eaton fails to meet its initial burden on summary judgment. The motion for summary judgment is denied.

C.  
Fraud

Eaton moves for summary adjudication of the fraud-based causes of action for (1) false representation and (2) intentional tort/intentional failure to warn/concealment (hereinafter "fraudulent concealment") on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Eaton misrepresented the safety of its products or that it had a duty to disclose the hazards of its products to her.

False



representation under Restatement of Torts section 402B establishes "liability for injuries caused by justifiable reliance on false advertising." (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section " '[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.' [Citation.]" (Id. at pp. 1750-1751.) "The rule 'is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.' [Citation.]" (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the "reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.' [Citation.]" (Westlye, supra, 17 Cal.App.4th at p. 1751.)

#### The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: "(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

#### Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: " '(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant

actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]' " (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, "As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties." (Id. at p. 337.) Unlike products liability, where there is a "general principle that a manufacturer has a duty to warn consumers of a product's hazards and faults," a duty to disclose material facts arises in the fraud context "only where there is already a sufficient relationship or transaction between the parties." (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

i.

Defendant's Burden: Factually Devoid

Eaton

argues that summary adjudication of the fraud-based causes of action is appropriate because Ms. Marschik "has no evidence, nor can she reasonably obtain any evidence, that Eaton ever made any misrepresentation with the intent to harm her. There is no evidence Ms. Marschik had any communications with Eaton whatsoever and no witness possesses any information regarding any representations made by Eaton." (Motion at pdf p.15.) Additionally, Eaton argues there is no evidence of "a legally cognizable relationship between Eaton and Ms. Marschik such that it had a duty to disclose information. While Plaintiff broadly allege all of the defendants, not just Eaton, 'owed [Ms. Marschik] a duty,'...has provided no evidence of any relationship giving rise to a necessary fiduciary or transactional relationship." (Id. at pdf p.16.)

In

opposition, Plaintiff argues that "Eaton's actions in failing to disclose the deadly hazards created by its products while knowing of such hazards is the type of nondisclosure that constitutes false representation. Eaton is not entitled to summary adjudication of this issue." (Opp. at p.11.)

When

Eaton asked Plaintiff to state all facts supporting the causes of action for false representation and fraudulent concealment, Plaintiff responded as follows:

“On

or before 1930, and thereafter, EATON was aware or should have been aware that members of the general public and other “exposed persons”, who would come in contact with their asbestos-containing products had no knowledge or information indicating that asbestos or asbestos-containing products could cause injury.

EATON knew that members of the general public and other “exposed persons” who came in contact with its asbestos-containing products, would assume, and in fact did assume, that exposure to their asbestos-containing products was safe, when in fact said exposure was extremely hazardous to health and human life.

On

or before 1932, and thereafter, EATON knew or should have known of the dangers associated with breathing asbestos-containing dust and knew or should have known that users of asbestos and asbestos products, as well as members of the general public who would be exposed to asbestos and asbestos containing products, had no knowledge or information indicating that asbestos could cause injury. EATON also knew or should have known that the users of asbestos and asbestos-containing products, as well as members of the general public who were exposed to asbestos and asbestos-containing products, would assume, and in fact did assume, that exposure to asbestos and asbestos containing products was safe, when in fact said exposure was extremely hazardous.

...

It

was known and foreseeable to EATON that the above-identified asbestos-containing products were used, installed, removed, handled and otherwise disturbed in the manner described above when the above-identified asbestos-containing products left EATON’s possession, particularly given its long standing relationship and knowledge of use of these products; yet, EATON provided no warnings to Plaintiff Bobbette Marschik or any other end user and bystander about the dangers of the above-identified asbestos-containing products. EATON had a duty to warn users of its products of the dangers of asbestos materials, but failed to do so. As a result, asbestos materials used, installed, removed, handled and otherwise disturbed in the manner described above without any precautions being taken and Plaintiff Bobbette Marschik suffered heavy exposure to asbestos. Such exposure to asbestos contributed to Plaintiff Bobbette Marschik developing mesothelioma.

EATON

had a duty to manufacture, distribute, sell, supply and market products that were free from latent or other known or knowable defects prior to its products leaving its possession and control and to clearly warn end users of the hazards of such products so that such end users and bystanders to such use could take proper precautions, if any, to make the use of such products safe. Despite its knowledge of the extraordinary health hazards associated with asbestos exposure, EATON continued to manufacture, distribute, market, sell and/or supply asbestos-containing products - with these inherent, knowable and in fact known design and manufacturing defects without any warnings or proper handling instructions, for decades after such knowledge was first known by it...

EATON

had a duty to warn users of its products of the dangers of asbestos materials, but failed to do so. In fact, EATON purposefully misrepresented the safety of their foregoing asbestos products, instead intentionally and fraudulently warranting them as safe and merchantable, for their intended use. EATON did each and all of these acts intentionally with knowledge of their foreseeable consequences. Plaintiff Bobbette Marschik reasonably relied upon EATON's intentional misrepresentations and warranties of safety to her harm and detriment. As a result, asbestos materials were installed, removed, repaired, sanded, swept up and otherwise disturbed without any precautions being taken and Plaintiff suffered heavy exposure to asbestos.

...

By

1972 OSHA promulgated regulations that made known the hazards of asbestos. EATON had a non-delegable duty to comply with OSHA regulations, and it was therefore known and foreseeable to EATON that the above-identified asbestos-containing products would create a health hazard when used and otherwise disturbed in the manner described above."

(Wyatt Decl., Exh. E at pp.7-13.)

Ms. Marschik testified at her deposition that she had never seen any catalogs, advertisements, or manuals from Eaton. (Wyatt Decl., Exh. G at 469:21-470:6.) Ms. Marschik had never received communications from anyone employed by Eaton. (Id., at 470:7-14.) Ms. Marschik also testified that her husband ordered parts from Eaton, that she never personally ordered Eaton products, and that she never saw her husband ordering Eaton products. (Id.,

at 468:14-22.)

Eaton satisfies its initial burden to prove that Ms.

Marschik lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. For the false representation cause of action, Ms. Marschik's deposition testimony establishes that she had never communicated with Eaton employees and had never seen Eaton advertisements. (Wyatt Decl., Exh. G at 469:21-470:6, 470:7-14.) This evidence establishes that Eaton could not have made misrepresentations about its' products' safety to Ms. Marschik because she admits she had no communication with Eaton. Although Ms. Marschik's interrogatory responses state Eaton knew of the dangers of asbestos in its products and misrepresented the safety of their products, Ms. Marschik's deposition testimony establishes she had never received these alleged misrepresentations. As for the cause of action for fraudulent concealment, Ms. Marschik also testified that she had never personally ordered brakes from Eaton. (Wyatt Decl., Exh. G at 468:14-22.) This evidence establishes that no transactional relationship giving rise to a duty to disclose existed between Ms. Marschik and Eaton.

Plaintiff's discovery responses therefore give rise to an inference that Plaintiff lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. Accordingly, the burden shifts to Plaintiff.

ii.

Plaintiff's

burden

Plaintiff argues in opposition that Eaton is not entitled to summary adjudication of the false representation and intentional tort claims because Eaton failed to disclose the deadly hazards of its products. Plaintiff presents no argument or affirmative evidence addressing the issues raised in Eaton's moving papers. As discussed, the discovery record establishes that Eaton never communicated with Ms. Marschik and no transactional relationship existed between Eaton and Ms. Marschik. Plaintiff therefore fails to present affirmative evidence to support her fraud-based causes of action against Eaton. Accordingly, Eaton's motions for summary adjudication of Plaintiff's fraud-based causes of action are granted.

D.

Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. “Although the clear and convincing evidentiary standard is a stringent one, ‘it does not impose on a plaintiff the obligation to “prove” a case for punitive damages at summary judgment [or summary adjudication.]’ [Citations.] Even so, ‘where the plaintiff’s ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.’ [Citation.]” (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158-1159.) For a corporate defendant, the oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

i.

Defendant’s Burden: Factually Devoid

Defendant moves for

summary adjudication of the demand for punitive damages on the grounds that Plaintiff lacks and cannot reasonably obtain evidence establishing by clear and convincing evidence that Eaton acted with malice, fraud, or oppression. (Motion at pdf pp.17-18 ["...in response to Eaton's Special Interrogatory expressly seeking all facts upon which he bases her punitive damages claim, Plaintiff does not provide a single reference to Eaton's alleged conduct towards Plaintiff and, instead, provides a broad, conclusory statement, without any supporting facts, that Eaton failed to provide any warning to her regarding the hazards of working with asbestos containing brakes and that Eaton Defendant knew this created dust, that this dust could contain asbestos and this dust released during use and replacement."].)

In opposition, Plaintiff,

citing *Pfeiffer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270 ("Pfeiffer"), argues that Eaton "knew that its products contained asbestos, knew that they were meant to be used for decades, and knew that asbestos dust was created from working with them. Yet Eaton continued to sell products without any warning, sold replacement parts and never sent out any recall notices for its products. These asbestos-containing products were never tested to determine if their use created asbestos dust in concentrations above regulatory limits. This was a conscious disregard of health and safety and, therefore, sufficient to raise triable issues as to culpability for punitive damages." (Opp. at p.13.)

In *Pfeiffer*,

evidence was sufficient to establish by clear and convincing evidence that a manufacturer of gaskets, JCI, knew that asbestos was hazardous by the 1970s when the Occupational Safety and Health Administration ("OSHA") promulgated regulations requiring manufacturers of asbestos-based products to monitor concentrations of asbestos fibers in the air in its factories. (*Pfeiffer*, supra, 220 Cal.App.4th at p.1300.) JCI also prepared safety data sheets for its sheet gaskets warning its employees that exposure to asbestos could cause asbestosis and cancer. (*Id.*) OSHA regulations also required manufacturers to place warning labels on products unless the fibers had been modified by a bonding agent that limited the asbestos released during foreseeable use of the gaskets. (*Id.*) JCI knew asbestos dust was released when its users replaced fragmented old. (*Id.*) Additionally, JCI knew products did not fully encapsulate the asbestos fibers and that removal methods resulted in concentrations of asbestos fibers that greatly exceeded ordinary background levels. (*Id.*) The evidence supported a finding that

JCI acted with a conscious disregard for the safety of others because it understood that asbestos dust endangered workers and continued to sell a product that generated considerable asbestos dust without warnings. (Id. at pp.1300-1301.)

Here, Plaintiff's interrogatory responses state in relevant part:

"It was known and foreseeable to EATON that the above-identified asbestos-containing products were used, installed, removed, handled and otherwise disturbed in the manner described above when the above-identified asbestos-containing products left EATON's possession, particularly given its long standing relationship and knowledge of use of these products; yet, EATON provided no warnings to Plaintiff Bobbette Marschik or any other end user and bystander about the dangers of the above-identified asbestos-containing products. EATON had a duty to warn users of its products of the dangers of asbestos materials, but failed to do so. As a result, asbestos materials used, installed, removed, handled and otherwise disturbed in the manner described above without any precautions being taken and Plaintiff Bobbette Marschik suffered heavy exposure to asbestos. Such exposure to asbestos contributed to Plaintiff Bobbette Marschik developing mesothelioma."

(Wyatt Decl., Exh. E at pp.8-9.)

Additionally, Plaintiff's responses to requests for production direct Eaton to OSHA standards relating to asbestos to show that Eaton was on notice of the hazards of asbestos in its products:

"Plaintiff also identifies OSHA standards relating to asbestos, found at Code of Federal Regulations, Title 29, Chapter 17, Section 1910, et seq.; and Title 8, Section 5208 of the California OSHA regulations pertaining to asbestos exposure. Defendant was subject to these regulations, which thus but (sic) Defendant on constructive if not actual notice of harms associated with asbestos exposure long before Plaintiff was exposed to asbestos from Defendant's products."

(Wyatt Decl., Exh.



F at p. 5.)

Eaton satisfies its burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support her demand for punitive damages. Although Plaintiff's discovery responses state that it was foreseeable based on OSHA standards and known uses of its products that end users of its brakes would handle their products in a manner that released asbestos dust, there are no facts that Eaton was on notice that handling the brakes would expose others not directly working with the brakes, such as Ms. Marschik, to asbestos dust. In Pfeiffer, a manufacturer knew of the exposure risks to end users because it knew removing its gaskets resulted in dust exceeding levels permitted by OSHA. Here, unlike in Pfeiffer, there is no evidence that Eaton knew end users handling brakes would expose others not directly working with the brakes to hazardous levels of asbestos. There is no evidence in the discovery record that Eaton knew of the hazards its products posed to bystanders like Ms. Marschik and continued to sell them without warning. Accordingly, Plaintiff's discovery responses are devoid of facts supporting the demand for punitive damages.

ii.

Plaintiff's Burden

Plaintiff argues

that summary adjudication of the demand for punitive damages is not appropriate because Eaton knew its products contained asbestos, knew their products created asbestos dust, and failed to test the products to determine if their use created asbestos dust in concentrations above regulatory limits in conscious disregard for the health and safety of others. (Opp. at p.13.) However, this assertion is made in the opposition memorandum without evidentiary support.

Plaintiff provides

the deposition testimony of Eaton's corporate representative, Roger Hobbie, to show that Eaton sold asbestos-containing brakes until 1986 and knew of the hazards of asbestos by the 1960s. (PUMF No. 45, Halbany Decl., Exhs. E-H, Q-R.) Plaintiff also advances several research papers on the risk of asbestos exposure in brake maintenance work. (Halbany Decl., Exhs. I-P.) Mr. Hobbie's deposition testimony at most establishes that Eaton made asbestos brakes until 1986 and knew of the hazards of asbestos. However, the testimony fails to establish that Eaton knew of the exposure risks to others not working directly with the brakes such as Ms. Marschik. As for the remaining evidence, there is

no evidence that Eaton was aware of these research papers.

Plaintiff fails to

present affirmative evidence supporting her demand for punitive damages.

Accordingly, the motion for summary adjudication of the demand for punitive damages is granted.

E.

Breach of Implied Warranty

Eaton moves for summary

adjudication of the cause of action for breach of implied warranty on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Eaton was in privity with Ms. Marschik regarding the sale of any Eaton products. (Motion at pdf pp.16-17.) Eaton also argues that Plaintiff failed to identify a specific Eaton product that contributed to her injuries. (Id.)

Eaton's motion for

summary judgment was denied because it failed to meet its burden that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which Eaton was responsible. Accordingly, Eaton's argument pertaining to product identification fails. The motion for summary adjudication to the cause of action for breach of implied warranty thus turns on whether Ms. Marschik was in privity with Eaton.

"Vertical privity is a

prerequisite in California for recovery on a theory of breach of the implied warranties of fitness and merchantability." (United States Roofing, Inc. v. Credit Alliance Corp. (1991) 228 Cal.App.3d 1431, 1441, internal citations omitted.) However, it is well-settled that "employee[s] should be considered a member of the industrial 'family' of the employer—whether corporate or private— and to thus stand in such privity to the manufacturer as to permit the employee[s] to be covered by warranties made to the purchaser-employer." (Peterson v. Lamb Rubber Co. (1960) 54 Cal.2d 339, 347.)

Here,

there is no dispute that Ms. Marschik was an employee of the service centers she operated with her then-husband. As an employee of the service centers that purchased the products at issue, Ms. Marschik stands in privity with Eaton and

is covered by the warranties made to those service centers. Eaton's argument with respect to privity fails. The motion for summary adjudication of the cause of action for breach of implied warranty is denied.

A.

Continuance Pursuant to Code of Civil Procedure 437c  
subdivision (h).

Plaintiff

requests a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h) which states "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (Code Civ. Proc., § 437c(h).) "A declaration in support of a request for continuance under section 437c, subdivision (h) must show: '(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]' " (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.)

Plaintiff

requests a continuance under Code of Civil Procedure section 437c, subdivision (h), arguing "Plaintiff has not yet had the opportunity to take the deposition of Eaton through its PMQ, which will include examination and document production, including but not limited to its manufacture and sale of asbestos-containing brakes and gaskets to heavy-duty truck and mobile home manufacturers as well as Eaton's knowledge of the hazards of asbestos." (Opp. at p.15.)

Plaintiff fails to

present sufficient evidence to show she is entitled to a continuance of this motion. Specifically, Plaintiff fails to establish that the deposition of the corporate representative would provide facts essential to opposing the motion. The motion for summary judgment was denied. The motion for summary adjudication to the cause of action for breach of implied warranty was also denied. With respect to the fraud causes of action, deposing Eaton's PMQ would not reveal

information about whether Ms. Marschik communicated with Eaton or directly transacted with Eaton because her own testimony establishes that she did neither. With respect to the demand for punitive damages, Plaintiff's counsel failed to explain how deposing Eaton's PMQ would reveal whether it knew of the risk posed to bystanders not working directly with Eaton's brake products such as Ms. Marschik. Plaintiff therefore fails to establish why she believe additional facts exist to support her opposition. The request for a continuance is denied.

III.

### Conclusion

Eaton fails to meet its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied. Eaton's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment. Additionally, Eaton's argument with respect to privity is without merit.

Eaton satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Eaton engaged in conduct amounting to malice, fraud, or oppression. Eaton also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Eaton misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Eaton's motion for summary adjudication of the fraud-based causes of action and the demand for punitive damages is granted.

Plaintiff's request for a continuance under Code of Civil Procedure section 437c, subdivision (h) is denied.

[1] The court notes Eaton's original memorandum has no page numbers in violation of California Rules of Court, rule 2.109. Eaton is advised to follow the required formatting for future filings.